

1197-1198. However, neither of these cases address whether apportionment of fault is an independent cause of action.

Civil Code section 1431.2 states, “In any action for personal injury, property damage, or wrongful death, based upon principles of comparative fault, the liability of each defendant for non-economic damages shall be several only and shall not be joint. Each defendant shall be liable only for the amount of non-economic damages allocated to that defendant in direct proportion to that defendant’s percentage of fault, and a separate judgment shall be rendered against that defendant for that amount.” (Civ. Code, § 1431.2, subd. (a).)

The comparative fault doctrine “is a flexible, commonsense concept, under which a jury properly may consider and evaluate the relative responsibility of various parties for an injury (whether their responsibility for the injury rests on negligence, strict, liability, or other theories of responsibility), in order to arrive at an ‘equitable apportionment or allocation of loss.’” (*Knight v. Jewett* (1992) 3 Cal.4th 296, 314.) It apportions liability in direct proportion to fault in all cases. (*Li v. Yellow Cab Co.* (1975) 13 Cal.3d 804, 827.)

By its plain language, apportionment of fault is a defense, not an independent cause of action. SUSTAINED

As to the special demurrer, the Cross Complaint fails to allege the basis for tort liability against Barrier involving a duty owed to Plaintiff. It is devoid of facts where Barrier cannot reasonably determine what issues must be admitted or denied. SUSTAINED.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2602834	CAMERON VS BISHOP	ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE) BY CHARLES BISHOP, KATHLEEN NEGRETE, JERRY LUGO, ZEKE WHEELER, TABITHA BLACK

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This matter concerns a homeowners association dispute. Plaintiff Steven Cameron is a homeowner in Bermuda Dunes Country Club, a common interest development governed by Defendant Bermuda Dunes Community Association (“Association”). (Complaint ¶11.) Defendant Kathleen Negrete is the President of the Board of Directors of the Association. (Comp. ¶3.) Defendant Jerry Lugo is the Vice President of the Board of Directors of the Association. (¶4.) Defendant Charles Bishop is the Secretary of the Board of Directors. (¶5.) Defendant Zeke Wheeler is a director on the Board of Directors. (¶6.) Defendant Tabitha Black is also a director on the Board of Directors. (¶7.)

Miguel and Maria Teresa Gonzalez own the home located next to Plaintiff’s home in the community. (Comp. ¶18.) Plaintiff alleges the Gonzalez home was renovated and while the homeowners obtained approval for certain construction plans on the property, the construction as performed materially and repeatedly deviated from the approved plans. (¶20.) Plaintiff contends the deviations included an unapproved garage door, gates, and

altered elevations. (¶21.) Plaintiff alleges the deviations are inconsistent with the community's architectural standards. (¶21.) Plaintiff further alleges the construction project has remained incomplete for more than two years and has posed various safety risks to Plaintiff and other residents. (¶24.)

Plaintiff repeatedly complained to the Association about the construction and hazardous conditions of the property. (Comp. ¶25.) Plaintiff alleges Defendants failed to take remedial action to address Plaintiff's complaints. (¶¶27-28.) Plaintiff alleges he has suffered loss of quiet enjoyment, exposure to hazardous conditions, and has been forced to incur attorney fees and costs to protect his property interests as a direct result of Defendants' acts and omissions. (¶40.)

The Complaint alleges: (1) breach of CC&Rs and governing documents; (2) breach of fiduciary duty; (3) negligence; (4) tort of another; (5) violation of Civil Code §5200 et seq.; (6) violation of Civil Code §5935; and (7) declaratory relief. The Complaint names the individual directors, the Association, Desert Resort Management, and Vintage Real Estate Group as defendants.

Defendants Negrete, Lugo, Bishop, Wheeler, and Black ("the director defendants") now bring the instant special motion to strike the first, second, third, fourth, and seventh causes of action. The director defendants argue Plaintiff improperly brings claims against them for their voting and decision-making regarding issues of public concern. Defendants argue they are immune under the governing documents and Business Judgment Rule. Defendants further argue Plaintiff failed to comply with Civil Code §5930 and CCP §425.15.

Plaintiff opposes the motion. Plaintiff argues he does not challenge any statement made, vote case, or writing authored by any of the director defendants. Instead, Plaintiff is challenging their sustained failure to act which is permissible. Plaintiff contends the gravamen of the instant action is the director defendants' failure to enforce the CC&Rs against ongoing architectural noncompliance and to abate a resulting physical hazard. Plaintiff argues the motion fails under the first prong as Plaintiff's claims do not fall within the class of suits subject to an anti-SLAPP motion. Should the court reach the second prong of the analysis, Plaintiff argues he can establish a probability that he will prevail on his claims.

Anti-SLAPP

As a general rule, when a cause of action arises out of the furtherance of a defendant's right of petition or free speech in connection with a public issue, it is subject to a special motion to strike. (CCP § 425.16(b)(1).) An "act in furtherance of a person's right of petition or free speech" ... includes ... any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or ... any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." (CCP § 425.16(e)(3)-(4).) Importantly, however, "[t]he anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity." (*Baral v. Schnitt* (2016) 1 Cal.5th 376,

384 [emphasis in the original].) Thus, courts use a two-step evaluation to determine whether an action is a SLAPP suit subject to a special motion to strike: (1) the Plaintiff's claim must arise out of the Defendant's protected speech or petitioning; and (2) the Plaintiff's claim lacks even minimal merit. (*Navellier v. Sletten*, (2009) 29 Cal.4th 82, 88-89; see also *Ericsson GE Mobile Communications, Inc. v. C.S.I. Telecommunications Engineers* (1996) 49 Cal.App.4th 1591, 1601, 1603.)

The moving party bears the initial burden of showing that the action falls within the class of suits subject to the special motion to strike. (*Wilcox v. Superior Court* (1994) 17 Cal.App.4th 809, 819.) To meet the initial burden, a defendant need only show that the complaint "*arises from*" defendant's exercise of free speech or petition rights as defined in §425.16(e). (*Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) The act which forms the basis for the cause of action must itself have been an act in furtherance of the right of petition or free speech. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76-78.)

Once the defendant makes such a prima facie showing, the burden shifts to the plaintiff to establish a "probability" that it will prevail on whatever claims are asserted against the moving defendant. (CCP § 425.16(b).) The plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment. (*Navellier, supra*, 29 Cal.4th at 89, 93.) The court does not weigh the credibility or comparative strength of the evidence, but instead accepts as true all evidence favorable to the plaintiff. (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.App.4th 260, 291; *Overstock.com, Inc. v. Gradient Analytics, Inc.* (2007) 151 Cal.App.4th 688, 699-700.)

"Arising From" Prong

"Arising from" means that the defendant's act underlying the plaintiff's causes of action must *itself* have been an act in furtherance of the right of petition or free speech. (*City of Cotati, supra*, 29 Cal.4th at 78.) In other words, "the critical consideration is whether the cause of action is *based on* the defendant's protected free speech or petitioning activity." (*Navellier, supra*, 29 Cal.4th at 89.) Whether the anti-SLAPP statute applies is determined by the "principal thrust or gravamen" of the plaintiff's claims; it cannot be invoked where the allegations of protected activity are only *incidental* to a cause of action based on nonprotected activity. (*Martinez v. Metabolife Int'l, Inc.* (2003) 113 Cal.App.4th 181, 187.) "If the core injury-causing conduct on which plaintiff's claim is premised does not rest on protected speech, collateral or incidental allusions to protected activity will not trigger application of the anti-SLAPP statute." (*Trilogy at Glen Ivy Maintenance Assn. v. Shea Homes, Inc.* (2015) 235 Cal.App.4th 361, 368 [citing *Martinez, supra*, 113 Cal.App.4th at 189].) "To determine the applicability of . . . the anti-SLAPP statute, [courts] look to the gravamen of the instant action. . . . [T]he gravamen of an action is the *allegedly wrongful and injury-producing conduct*, not the damage which flows from said conduct." (*Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 387 [italics in original]; accord *Trapp v. Naiman* (2013) 218 Cal.App.4th 113, 121.)

The first issue the court must address is whether the director defendants' actions (or inactions) underlying Plaintiff's claims were themselves actions in furtherance of the right

of petition or free speech. The court must identify the allegedly wrongful and injury-producing conduct. If that conduct rests on free speech, the first prong has been satisfied and the court can move on to the next part of the analysis. If, however, the complained-of conduct does not rest on free speech, the “arising from” prong has not been met and the instant motion must be denied.

Important to the court’s analysis of this motion is the following from the California Supreme Court: “a claim may be struck [via an Anti-SLAPP motion] only if the speech or petitioning activity *itself* is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060 (emphasis in original).) In *Park*, a university professor sued the Board of Trustees for discrimination after he was denied tenure in favor of non-minority coworkers. The Supreme Court, in reviewing an opinion from a divided Court of Appeal, noted the elements of Park’s claim depended on the denial of his tenure and whether the motive for denying his tenure was impermissible. Park’s claim did not rest on the grievance proceeding, any statements, or specific evaluations of him in the tenure process. The court noted that even though the ultimate tenure decision may have been communicated orally or in writing, those communications did “not convert Park’s suit to one arising from such speech.” (Id. at 1068.)

Defendants rely on *Lee v. Silveira* (2016) 6 Cal.App.5th 527 (“*Lee*”). In that case, three board members of a homeowners association sued six other board members and the association’s manager, but not the association itself. (Id. at 530.) At a board meeting, the directors discussed the renewal of a financial management contract. Plaintiffs requested the board seek additional bids for the management contract. Defendants believed the board should renew the contract for another year. Defendant Silveira made a motion to approve the management contract, which was seconded and ultimately passed. Plaintiffs voted against renewal. (Id. at 533.)

Plaintiffs’ complaint alleged the director defendants failed to follow proper bid procedures when they voted to renew the contract. It further alleged defendants adopted policies in violation of plaintiffs’ rights to carry out their respective responsibilities and duties as directors. (Id. at 534.) Plaintiffs also alleged the board allowed a roofing project to escalate significantly in cost and Plaintiffs specifically challenged the board’s vote concerning the roofing project. (Id. at 535.) The Complaint alleged one claim for declaratory relief but sought declaratory relief on nine (9) separate matters. (Id. at 537.) Director defendants brought a special motion to strike which the trial court denied. (Ibid.)

In reversing the trial court’s decision, the Court of Appeal found the board meetings in which the director defendants allegedly engaged in wrongful conduct constituted a public forum under the anti-SLAPP statute. (Id. at 540.) The Court further found it was “clear from the substance of plaintiffs’ declaratory relief claim that director defendants’ acts in voting were not ‘merely incidental’ to the allegations of ‘wrongful conduct’ asserted against” the defendants. (Id. at 543.) Rather, Plaintiffs alleged the defendants engaged in wrongful conduct based on *how* they voted in board meetings on “public issues” affecting association members. (Ibid.) The Court found the director defendants’ voting at board meetings were protected under the anti-SLAPP statute as acts in furtherance of their right to free speech made in connection with a “public issue.” (Id. at 545.)

In *Schwarzburd v. Kensington Police Protection & Community Services District Board* (2014) 225 Cal.App.4th 1345 (“*Schwarzburd*”), three individual board members were named as respondents in a writ petition brought by two other board members challenging the salary and bonus awarded to a police chief. (Id. at 1348-1349.) The court noted the individual board members who voted in favor of the salary increase and bonus were protected by the anti-SLAPP statute because they “were not sued simply because they voted but based on *how* they voted and expressed themselves at the [b]oard meeting.” (Id. at 1355.)

The first cause of action for breach of the CC&Rs and governing documents alleges the Directors Defendants owed Plaintiff an affirmative duty to enforce compliance with the governing documents of the HOA. (Comp. ¶45.) Plaintiff asserts he repeatedly notified Defendants of violations of the governing documents from the Gonzalez construction project. (¶¶47-48.) Despite actual knowledge of the violations, Plaintiff alleges Defendants failed to enforce the governing documents, failed to require correction of the unauthorized construction, and failed to take any meaningful enforcement action. (¶49.)

The second cause of action for breach of fiduciary duty alleges the Director Defendants owed Plaintiff fiduciary duties, including the duty to enforce the governing documents. (¶55.) Plaintiff alleges Defendants breached their fiduciary duties by “failing and refusing to enforce the CC&Rs and architectural standards against Homeowners, despite repeated notice of ongoing and obvious violations.” (¶57.) Plaintiff further alleges Defendants breached their duty by failing to investigate known violations and allowing unauthorized construction and hazardous conditions to persist for more than two years. (¶58.) The Complaint alleges the Director Defendants “breached their fiduciary duties by failing to exercise reasonable oversight over the HOA’s enforcement obligations and by acquiescing in the HOA’s refusal to enforce the governing documents.” (¶60.) Plaintiff’s claim is based on the Director Defendants’ collective failure to act and enforce the governing documents.

The third cause of action for negligence alleges the Director Defendants owed Plaintiff, as a member of the HOA, a duty to enforce the governing documents. (Comp. ¶65.) Defendants are alleged to have breached this duty by failing to enforce architectural standards and allowing the unauthorized construction and hazardous conditions to persist. (Comp. ¶67.)

The fourth cause of action for tort of another rests on the same premise – Defendants’ failure to act and enforce the governing documents meant Plaintiff had to obtain legal counsel and incur attorney fees and costs in order to enforce the governing documents and protect his rights and property. (Comp. ¶¶71-72.)

Finally, Plaintiff’s seventh cause of action for declaratory relief is premised on the same allegations already discussed. (Comp. ¶¶100-102.)

In sum, Plaintiff seeks to hold the individual directors accountable for failing to enforce the governing documents and act on Plaintiff’s many complaints that the governing documents were being violated. Plaintiff is not challenging the director defendants’ actions as a result of *how* they voted on subject matters pending before the board, like in *Schwarzburd* or *Lee*. Rather, Plaintiff’s claims are rooted in the allegation that the director

defendants failed to enforce the governing documents and breached various duties owed to Plaintiff and other homeowners. In align with *Park*, the fact that Defendants' alleged breach of those duties may be evidenced by oral or written communications does not transform Plaintiff's claims into claims arising from Defendants' protected speech.

Defendants note the Board addressed Plaintiff's concerns at the October 22, 2024, board meeting. (Negrete Decl. ¶12.) The Board decided to "continue to monitor the progress" and ultimately the Board approved the neighboring homeowners' construction plan. (Negrete Decl. ¶¶12-13.) Defendants contend Plaintiff is challenging their decision at this meeting. Under the authorities discussed above, Defendants argue this makes their conduct protected by the anti-SLAPP statute. Plaintiff, however, argues his claims "rest on the two year continuum of inaction that followed the October 2024 Meeting and continued independent of it." (Opp. p.8:26-27.) Plaintiff argues he is not challenging the specific way the Board voted at the October 2024 meeting. Instead, Plaintiff is again challenging the Board's failure to monitor the construction and enforce the governing documents in the years that followed that decision. Plaintiff's explanation is more in line with the allegations in the Complaint and the evidence presented by the parties in support of and in opposition to the instant motion. For this reason, Defendants have not met their initial burden to demonstrate the complained-of conduct rests on free speech.

Since Defendants did not meet their initial burden on the first prong of the analysis, the court need not consider the remaining arguments concerning whether Plaintiff can show a probability of prevailing on the merits of his claims.